

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present

Mr. Justice Ashish Ranjan Das

And

Mr. Justice Md. Riaz Uddin Khan

Criminal Appeal No. 3420 of 2021

In the matter of:

A petition of appeal under section 410 of the
Code of Criminal Procedure

In the matter of:

Arfan

...Convict- Appellant

Versus

The State

... Respondent

Mr. Aviram Mallick, Advocate

...For the Convict-Appellant

Mr. S.M. Asraful Hoque, D.A.G with

Ms. Fatema Rashid, A.A.G

Mr. Md. Shafiquzzaman, A.A.G. and

Mr. Md. Akber Hossain, A.A.G

...For the State

Judgment on: 02.06.2024

Md. Riaz Uddin Khan, J:

This appeal is directed against the judgment and order of conviction dated 28.02.2021 passed against the appellant in Sessions Case No. 61 of 2014 arising out of G.R. Case No. 198 of 2005 corresponding to Tarakanda Police Station Case No. 02 dated 02.12.2005 convicting the appellant under Section 302 of the Penal Code and thereby

sentencing him to suffer imprisonment for life and to pay a fine of Tk. 10,000/- (Ten thousand) in default of which to suffer simple imprisonment for 06(six) months more.

The appellant along with others stood trial on the charge under section 147/148/323/324/325/326/307/447/302/114/34 of the Penal Code.

The prosecution in total examined 10(ten) witnesses while the defence examined none.

Succinct facts for disposal of this appeal is that one Md. Arab Ali lodged a First Information Report (FIR) with the Tarakanda Police Station of Mymensingh stating *inter alia* that there was previous enmity and cases in connection with land between the informant's family and accuseds' family. On 30.11.2005 at about 9.30 am, some FIR named accused attacked on informant's uncle's cultivated crop field with local lethal weapons and was beating the members of the informant's family who was present on that land. During the collision while informant's niece i.e. Marjina was approaching into the place of occurrence, on the order of accused Mofazzal accused Akram Ali hit her with an iron rod for which she fell down on earth. Subsequently, the victim was taken to

Mymensingh Medical College Hospital for treatment where she died on 01.12.2005 and on this allegation the said FIR was lodged against all the accused which gave rise to Tarakanda Police Station Case No. 02 dated 02.12.2005 under sections 147/148/323/324/325/326/307/447/302/114/34 of the Penal Code.

After investigation police submitted charge sheet against the convict appellant and others under sections 147/148/323/324/235/326/307/447/302/114/34 of the Penal Code.

In course of time the case was transmitted to the Court of sessions for trial and the trial court framed charge against the convict appellant and others under sections 148/302/323/34 of the Penal Code. However, the case was ultimately tried by the Special Sessions Judge, Mymensingh who after completion of the trial found the appellant guilty and convicted him under section 302 of the Penal Code sentencing him to suffer imprisonment for life and to pay a fine of Tk. 10,000/- (Ten thousand) in default of which to suffer simple imprisonment for further 06(six) months and acquitted all other accused except Hanifa who was convicted under section 323 of the Penal Code.

PW-1, Md. Abul Kalam stated that he cannot remember the date of occurrence but it was 5 years ago at 9.00 am, Wednesday. When he and others were harvesting rice belonging to his elder brother Mokhles Uddin's land then accused Jamal, Arfan, Mofazzal, Askar, Hanifa, Farid Nurul, Sultan, Ripon, Momin, Mofizul, Milan, Sharaf Uddin, Hasim Uddin, Nazim Uddin, Atab Uddin, Masud, Tara Mia, Surju, Lalu, Mogbul Hossain armed with da, sticks, surki, ballam etc. started coming to the field. Then seeing this situation, his daughter Marjina approached towards them and said the accused may kill them. Then accused Mofazzal told the other accused that this girl is an informer, kill her. Then accused Farid grabbed her and accused Arfan hit her on the head with an iron rod. Then accused Askar punched her hardly for which she fell down and accused Hanifa hit her chest with brick causing bloody wound. The other accused beat them indiscriminately. When her daughter got injured and fell on the ground, the accused advanced towards them and hit some of them causing various injuries to them. When the people came forward the accused left the place and they admitted the victims to Mymensingh Medical College Hospital. His

daughter succumbed to her injury at the end of the day of occurrence. He identified the accused present on the dock. In his cross-examination he stated that informant Arab Ali is his brother. The accused had no previous enmity with his daughter or with him. There is a shallow machine on the north side of the field and an iron pipe over there. He told the IO that accused Arfan hit on her daughter's head. This witness denied all the suggestions of the accused.

PW-2, Md. Arab Ali stated in his deposition that he is the informant and deceased Marjina was his elder brother's daughter. They have land dispute with the accused. When they (Moslem, Belal, Kalam, Malek, Hasim) were harvesting paddy in their land accused Jamal informed other accused about their paddy harvesting. Then the accused Samed, Mahar Uddin, Arfan Ali, Akram, Jamal, Mofazzal, Hanifa, Tara Mia, Sarju, Mostafa, Lalu, Saraf Uddin, Hasim Uddin, Nazim Uddin, Atab Uddin, Masud, Rahim, Morshed, Helal, Ah Hi, Askar Ali, Fazlul Haque, Kafil, Sultan, Milon, Ripon, Momin, Qudduch, Sohag, Farid, Nurul, Mirash, Rashid, Maghbul, Akram attacked them with Da, Lathi, Salafi, Ramdao, iron rod, brick etc. in their

paddy field. At that time his neice Marjina was coming from the house towards them. Then, on the order of accused Mofazzal, accused Arfan Ali alias Akram hit Marjina on the head with an iron rod and Marjina fell on the ground. Then accused Hanifa hit Marjina's chest with a brick causing bloody injuries. Other accused hit them causing various injuries. On their outcry when the people of the village came forward, the accused left the spot. Later the village people brought all the injured to Mymensingh Hospital. Marjina succumbed to her injuries at 7.20 am, the next morning. After Marjina's burial, he lodged the case. In his cross-examination he stated that the fights were held in two places. Accused Hanifa filed a case against his brother, nephew and other before filing his case. Accused Lal Miah filed another case against them before his case. The distance of the 2nd occurrence was 300/400 yards from the first occurrence. After going to the police station they first talk to the O.C; a constable registered the case but cannot remember his name. The constable wrote the case according to his words. It is not true that Arfan is known by single name and has no alias name. The accused attacked them first.

At that time Marjina was coming and the accused started beating her. After the fight, people came from the surrounding area. Marjina and Emdad were beaten on the south side of the house where Marjina was killed on Emdad's field. It is not true that Marjina was ill from childhood or that she got stuck with pipe in the machine house or that the accused did not hurt Marjina as alleged. It is not true that with the help of BNP leaders in the hospital he obtained a false post mortem report showing Marjina's death in an accident as murder.

PW-3, Md. Abdul Halim stated in his deposition that on 30/11/05 at about 9.30 am he was harvesting paddy in his land. The accused Tajul, Ripon, Mirash, Atar Uddin, Nazim Uddin, Hanifa, Sultan, Farid, Nurul, Mirash Uddin, Rahim, Peshar, Sharaf Uddin, Tara Mia, came to the north side of his house. Kalu, Surjat, Rashid, Khalil, Amir Ali, Maqbool, Manik, Arfan @ Akram beat his share-cropper and his sons. At this time Marjina was going to her uncles and on the order of accused Mofazzal, accused Arfan Ali alias Akram hit Marjina on the head with the iron rod. Hanifa hit Marjina on the chest with a brick and Marjina fell down. Some of

the accused injured the informant and his brothers. Marjina was admitted to Mymensingh Medical College Hospital where she died at 7.00 am the next day. In his cross-examination he stated that at the time of lodging the case with police station he accompanied the informant. The accused did not beat him. The first incident occurred about 700 yards from the field he was working on. After the first incident, 15/20 people came to the spot from outside. He filed a case against the accused. Before the filing of the present case, they were having trouble with some of the accused with properties and there are cases filed from both sides. The accused had no dispute with the deceased Marjina. He told to the IO that accused Arfan hit Marjina on her head. It is not true that Marjina died after being injured fastened by machine belt in his father's machine room. Marjina died at the hospital. This witness denied all the suggestions of the accused.

PW-4, Md. Abdul Halim stated in his deposition that 4/5 years ago when they were cutting paddy in their property he saw accused Mofazzal, Hanifa, Arfan alias Akram, Mokbul, Rashid, Milan, Shukkur, Khalil, Sarju, Tara Mia, Sharaf Uddin, Ata, Masud

alias Meser, Moharuddin, Manik, Farid attacked them with Sorki, Ballam, Ramdao, iron rod etc. At that time, Marjina was coming towards them and on the order of accused Mofazzol, accused Arfan @ Akram hit Marjina on the head with the iron rod for which she fell down on the ground and accused Hanifa hit her chest with a brick. All accused hit them causing injuries for which the injured were admitted to Mymensingh Hospital where Marjina died at 7.00 am the next day. In his cross-examination he stated that he told the IO that accused Arfan alias Akram hit Marjina on the head with an iron rod. At the time of occurrence Marjina's father did not have any machine in the house but the pipes of the machine were placed underground. It is not true that Marjina fell on the pipe of the machine and got injured and later died after being taken to the hospital.

PW-5, Billal Hossain stated in his deposition that her neice Marjina, seeing the accused, ran from her house towards them and then on the order of accused Mofazzal, accused Arfan hit Marjina on the head with an iron rod for which she fell on the ground. Then the accused Hanifa hit Marjina on the

chest with a brick causing a bloody wound. All the accused attacked them causing injuries and they were admitted to Mymensingh Medical College Hospital along with Marjina and Marjina died at the hospital in the next morning due to injuries. In his cross-examination he stated that deceased Marjina was his brother's daughter. The accused had no dispute with Marjina. There are suits/cases between the parties. It is not true that he did not tell the IO that accused Arfan hit Marjina on the head. This witness denied all the suggestions of the accused.

PW-6, Md. Abdul Malek stated in his deposition that on the date of occurrence when he was harvesting paddy in Rashid's field along with his brothers, the FIR named accused were coming to attacked them with da, sticks, Sulfi, iron rods, bricks, etc. At that time Marjina ran towards them and asked them to leave. Then on the order of accused Mofazzal, accused Arfan hit Marjina on the head with an iron rod and Hanifa hit Marjina's chest with a brick. All the accused hit them with those local weapons causing bloody injuries. Local people came and admitted them to Mymensingh Medical College Hospital. Marjina died in the hospital the

next morning due to the injury. In his cross-examination he stated that the accused first beat Marjina. There is a suit in the civil court regarding the Moslem's property. Some of the witnesses in this case are accused in Moslem's case. He is a witness in that case. Accused Lal Mia and Hanifa have filed two cases before them; he is accused in both cases. After 6/7 days of the occurrence he gave statement to the IO. This witness denied all the suggestions of the accused.

PW-7, Md. Emdadul Haque stated in his deposition that on 30/11/05 at about 9.00/9.30 am they went to harvest paddy in the field of Moslem. Accused Khalil, Farid, Nibas, Momin, Milon, Moral, Masud, Atabuddin, Lalu, Mustafa, Tara Mia, Arfan, Mahr Uddin are in total 40 persons. Marjina came to them and said that the accused are coming. When they were about to leave the field, accused Arfan hit Marjina on the head with an iron rod. Then accused Farid hit Morjina on the chest. Accused Rashid hit her with Sulfi on her left knee causing bloody injury and other accused beat her indiscriminately. When they screamed, the accused ran away. Marjina was admitted to hospital and later he heard that she died at 1.00 am. In his cross-examination

he stated that at the time of occurrence, accused Momin, Milon, Ripon were not present and they were not involved in the occurrence. There are multiple suits/cases between them and accused. They were harvesting paddy. Marjina came first then the accused came. Marjina's father has a shallow machine, but no room. Marjina was on the road. People come when they shout. 10/12 people came including Abu Shama, Jabbar, Idris, Latif who saw the occurrence. This witness denied all the suggestion of the accused.

PW-8, S.I. Md. Abdul Malek stated in his deposition that on 14.06.2006 upon instructions of the officer-in-charge, he received the case for investigation. On review of the index map prepared by the previous investigating officer S, I, Moktadar found it correct for which he did not redraft again of the 2nd place of occurrence. He prepared the 1st place of occurrence map and index. He interrogated the witnesses and recorded their statements under Section 161 of the Criminal Procedure Code. He received and reviewed the injury certificate and autopsy report of deceased Marjina. Finding prima facie case he submitted charge sheet. In his cross-examination he stated that 2

other people investigated the case before him. He visited the spot. He examined 6 witnesses. He interrogated those who have houses on the side of the land. He found on investigation that the murder was due to a land dispute. It is not true that Marjina died in an accident or he didn't investigate the case properly.

PW-9, Qurban Ali stated in his deposition that he cannot remember the date of occurrence but it was Wednesday in the month of Agrahayan. Marjina was killed during the occurrence. He can't tell who killed her. The accused declined to cross examine him.

PW-10, S.I. Md. Abdul Moktadir stated in his deposition that on 02/12/2005 the officer-in-charge of Tarakanda police station assigned the investigation to him and he visited the spot and prepared map and index of the spot. He interrogated the witnesses and recorded their statement under Section 161 of the Criminal Procedure Code and arrested 3 accused. In his cross-examination he stated that witness A Halim testified before him that the accused Askar hit Marjina on the head with an iron rod. Witness Abul Kalam gave similar statement. Witness Amjad testified that accused Askar hit Marjina on

the head with an iron rod. Most of the witnesses told that the accused Askar hit Marjina on the head with an iron rod. He found in the investigation that there was a dispute between the two parties over the land. It is not true that he did not interrogate any impartial witness during investigation or he didn't investigate the case properly.

Mr. Aviram Mallick, the learned advocate appearing for the appellant submits that there was no specific allegation against the appellant in the FIR but allegation of inflicting iron rod blow on the head of deceased was made in the FIR against one Akram Ali. The first Investigating officer (PW-10) stated in his deposition that witnesses A. Halim (PW-3), Abul Kalam (PW-1) and Amzad told that accused Ashkar hit Marjina's head with an iron rod but in the court these witnesses deposed against the appellant which is doubtful and as such the prosecution has miserably failed to prove the case against the appellant beyond reasonable doubt.

The learned advocate then submits that it is admitted position that there was previous enmity between the informant party and the

accused over a piece of land and the instant case was cooked up due to previous enmity and the appellant did not even touch the deceased.

He further submits that the learned Judge failed to consider that no injury was found in the inquest report but in the post mortem report the doctor gave his opinion on the basis of police report which creates a serious doubt regarding the cause of death. The doctor who conducted post mortem has not been examined for which the appellant could not cross examine him causing serious prejudice to the appellant.

The learned advocate finally submits that the prosecution has miserably failed to prove that there is any ingredient of offence under section 302 of the Penal Code against the appellant.

On the other hand learned Deputy Attorney General appearing for the state submits that all the witnesses in a single voice stated before the court that appellant Arfan inflicted iron rod blow on the head of deceased Marjina. Though in the inquest report there was no mention of injury but in the post mortem report the doctor opined that cause of death was due to intracranial

haemorrhage resulting from head injury. Though the doctor was not examined but the post mortem report was exhibited (Exhibit-4) by the IO (PW-8) before the trial court. In such view of the matter the learned Deputy Attorney General prayed for dismissal of the appeal.

We have heard the learned Advocates of both the parties, perused the lower court record including FIR, Charge Sheet, depositions of the witnesses, exhibits, the impugned judgment and other materials on record.

The FIR was lodged by the father of the deceased Marjina who stated in the FIR that on the order of accused Mofazzal one Akram Ali hit his daughter on the head with an iron rod causing swallow injury and then accused Hanifa hit her chest with brick. This informant as PW-1 stated that on the order of accused Mofazzal accused Farid caught hold his daughter and the appellant Arfan hit her head by an iron rod, then accused Askar punched her and accused Hanifa hit her chest with brick. PW-2 an eye witness stated that accused Arfan Ali @ Akram inflicted iron rod blow on the head of Marjina and accused Hanifa hit her chest with a brick. PW-3,

another eye witness deposed that accused Arfan Ali @ Akram hit Marjina with an iron rod on her head and accused Hanifa hit her chest with a brick. PW-4 also an eye witness deposed like PWs-2 and 3 that accused Arfan Ali @ Akram hit Marjina with an iron rod on her head and accused Hanifa hit her chest with a brick. PWs-5 and 6 both eye witnesses stated in the same voice that accused Arfan hit Marjina with an iron rod on her head and accused Hanifa hit her chest with a brick. However, PW-7 who claimed himself as an eye witness deposed that accused Arfan hit Marjina with an iron rod on her head and accused Farid hit her chest with a brick. The 1st Investigating Officer (PW-10) deposed that all the witnesses told him that accused Askar inflicted iron rod blow on the head of the deceased. But all the witnesses deposed before the court that accused Arfan hit Marjina with an iron rod on her head.

Be that as it may, from the above depositions of the eye witnesses it appears that Arfan and Akram Ali is the same person who inflicted iron rod blow on the head of the deceased Marjina though unfortunately the Investigating Officer (PW-8) neither mentioned it in the charge sheet nor in his

deposition before the court. In such view of the fact we have no hesitation to hold that Akram Ali and the appellant Arfan is the same person.

It further appears from evidence on record that while there was a previous enmity and cases in connection with land properties between the parties and a fight was going to be occurred, the deceased Marjina came to the place of occurrence to rescue her father and uncles from the accused persons, at that moment this convict-appellant Arfan gave an iron rod blow on the head of the deceased. From the inquest report it appears that the maker of the report did not find any external injury on the body of the deceased. In the post mortem report doctor found 2 (two) external injuries: (i) Haematoma on left upper parietal region $2\frac{1}{2}$ "X2" (ii) Ecchymosis on middle of anterior chest over sternum. The doctor opined that considering the autopsy findings, Hospital records, Death certificate issued from MMCH and Primary investigation report submitted by the police authority death was due to intracranial haemorrhage resulting from head injury which was antemortem and homicidal in nature. It seems from the opinion of the doctor that he could

not fully rely on the autopsy findings. The victim died after 22 hours of the alleged time of occurrence. Considering all these aspects it cannot be said for sure that the blow inflicted by the appellant Arfan was intended to kill the deceased. It is also admitted by the prosecution witnesses that there was no personal enmity or grudge between the deceased and the accused.

Regard being had to the evidence on record, particularly the inquest report, autopsy report coupled with the depositions of the eye witnesses we are of the view that the blow inflicted by the appellant was not with the intention of causing death of the deceased, rather the bodily injury done by the appellant was likely to cause death of the deceased. This is clearly culpable homicide not amounting to murder. Section 299 of the Penal Code defines the culpable homicide as whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of culpable homicide. While according to section 300 of the Penal Code culpable homicide is

murder, if the act by which the death is caused is done with the intention of causing death. Murder is punishable under section 302 while culpable homicide is punishable under section 304 of the Penal Code.

We have already noticed that the appellant did not commit the offence of murder punishable under section 302 rather committed offence of culpable homicide punishable under section 304 of the Penal Code. In that view of the matter, we are of the firm opinion that the conviction of the appellant under section 302 is not justified rather he is guilty of the offence of culpable homicide punishable under section 304 (part-I) of the Penal Code and justice will be met if he is sentenced to suffer rigorous imprisonment for 10 (ten) years with a fine of Tk. 10,000/-(Ten thousand) in default to suffer further simple imprisonment for 06(six) months.

Considering the facts and circumstance of the case and the position of law we are inclined to interfere with the impugned judgment of conviction and sentence.

In the result the appel is **allowed-in-part.**

The impugned judgment and order of conviction and sentence dated 28.02.2021 passed by the learned Special Sessions Judge, Mymensingh in Sessions Case No. 61 of 2014 arising out of G.R. Case No. 198 of 2005 corresponding to Tarakanda Police Station Case No. 02 dated 02.12.2005 is hereby set-aside. The appellant is convicted under section 304 (part-I) of the Penal Code and is sentenced to suffer rigorous imprisonment for 10 (ten) years with a fine of Tk. 10,000/- (Ten thousand) in default of which to suffer simple imprisonment for 06(six) months more.

Send down the lower court's record along with a copy of this judgment at once.

Ashish Ranjan Das, J:

I agree.